

THE DRUGS AND MAGIC REMEDIES (OBJECTIONABLE ADVERTISEMENTS) ACT, 1954 (ACT NO. 21 OF 1954)

An Act to control the advertisement of drugs in certain cases, to prohibit advertisement of remedies alleged to possess magic qualities.

Section 3: Prohibition of advertisement of certain drugs for treatment of certain diseases:

No person shall take part in publication of any advertisement referring to any drug in terms suggesting its use for:

- (a) procurement of miscarriage or prevention of conception;
- (b) maintenance or improvement of sexual pleasure;
- (c) correction of menstrual disorder;
- (d) diagnosis, cure, mitigation, treatment or prevention of any disease/disorder specified in the Schedule (54 listed conditions).

Section 4: Prohibition of misleading advertisements relating to drugs:

No advertisement directly or indirectly giving false impression, false claim, or misleading material particulars.

Section 5: Prohibition of advertisement of magic remedies (talismans, mantras, kavachas claiming miraculous powers).

Section 7: Penalties: Imprisonment up to 6 months for first offence, up to 1 year for subsequent offence.

Schedule Highlights: Includes Cancer, Diabetes, Cataract, Heart diseases, High/low blood pressure, Paralysis, Tuberculosis, Sexual impotence.